

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

-----X
MORGAN ADZEI,

Plaintiff,

SUMMONS

-against-

Jury Trial Demanded

THE CITY OF NEW YORK, P.O. DWIGHT POWELL, Shield
No. 9038 (Tax Id. No. 951077), Individually and in his Official
Capacity, and POLICE OFFICERS "JOHN DOE" #1-10,
Individually and in their Official Capacity (the name John Doe
being fictitious, as the true names are presently unknown),

Plaintiff designates New York
County as the place of trial.

The basis of venue is:
CPLR § 504(3)

Defendants.

-----X

To the above-named Defendants:

You are hereby summoned to answer the Complaint in this action, and to serve a copy of your answer, or, if the Complaint is not served with this Summons, to serve a notice of appearance on the Plaintiffs' attorney within 20 days after the service of this Summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the Complaint.

Dated: NEW YORK, NEW YORK
March 12, 2019

COHEN & FITCH LLP
Attorneys for Plaintiff
233 Broadway, Suite 1800
New York, N.Y. 10279
(212) 374-9115

TO:

ZACHARY W. CARTER, Corporation Counsel of the City of New York
Attorney for Defendant THE CITY OF NEW YORK
100 Church Street
New York, New York 10007

P.O. DWIGHT POWELL, Shield No. 9038 (Tax Id. No. 951077)
33rd Precinct
2207 Amsterdam Ave.
New York, NY 10032

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

-----X
MORGAN ADZEI,

Plaintiff,

-against-

VERIFIED COMPLAINT

Jury Trial Demanded

BASIS FOR VENUE:

CPLR § 504(3)

THE CITY OF NEW YORK, P.O. DWIGHT POWELL, Shield No. 9038 (Tax Id. No. 951077), Individually and in his Official Capacity, and POLICE OFFICERS "JOHN DOE" #1-10, Individually and in their Official Capacity (the name John Doe being fictitious, as the true names are presently unknown),

Defendants.

-----X

Plaintiff MORGAN ADZEI, by his attorneys, COHEN & FITCH LLP, complaining of the defendants, respectfully alleges as follows:

FACTS

1. Plaintiff MORGAN ADZEI is an African-American male and has been at all relevant times a resident of the County, City, and State of New York.
2. Defendant, THE CITY OF NEW YORK, was and is a municipal corporation duly organized and existing under and by virtue of the laws of the State of New York.
3. Defendant, THE CITY OF NEW YORK, maintains the New York City Police Department, duly authorized public authorities and/or police departments, authorized to perform all functions of a police department as per the applicable sections of the New York State Criminal Procedure Law, acting under the direction and supervision of the aforementioned municipal corporation, The City of New York.

4. That at all times hereinafter mentioned, the individually named defendants, P.O. DWIGHT POWELL, Shield No. 9038 (Tax Id. No. 951077), and POLICE OFFICERS "JOHN DOE" #1-10, (the name John Doe being fictitious, as the true names are presently unknown), were duly sworn police officers of said department and were acting under the supervision of said department and according to their official duties.

5. That at all times hereinafter mentioned the defendants, either personally or through their employees, were acting under color of state law and/or in compliance with the official rules, regulations, laws, statutes, customs, usages and/or practices of the State or City of New York.

6. Each and all of the acts of the defendants alleged herein were done by said defendants while acting within the scope of their employment by defendant THE CITY OF NEW YORK.

7. Each and all of the acts of the defendants alleged herein were done by said defendants while acting in furtherance of their employment by defendant THE CITY OF NEW YORK.

8. At all relevant times mentioned herein plaintiff ADZEI was and is employed as a commercial real estate agent.

9. At all relevant times mentioned herein, plaintiff ADZEI, possessed a legal utility knife which he used in connection with his employment as a commercial real estate agent.

10. At all relevant times mentioned herein, plaintiff ADZEI has always possessed his utility knife in compliance with all applicable laws, and was and is legally entitled to possess the utility knife in the places where the incidents giving rise to this lawsuit took place.

11. On or about May 20, 2018 at approximately 8:49 a.m. in the County, City, and State of New York, plaintiff MORGAN ADZEI was lawfully in the vicinity of 4034 Broadway, New York, NY.

12. At the aforesaid time and place, NYPD officers – defendants POWELL and/or “JOHN DOE” #1-10 – accosted plaintiff and immediately began to search him for no apparent reason. Specifically, upon information and belief, defendant POWELL grabbed plaintiff by his arms and then placed his hand in plaintiff’s pocket and removed plaintiff’s legal utility knife/folding knife, which was not a gravity knife, was not illegal in any way, and which plaintiff was legally entitled to possess.

13. Subsequently, defendants POWELL and/or “JOHN DOE” #1-10 placed plaintiff under arrest by handcuffing his arms tightly behind his back.

14. At no time on May 20, 2018, did defendants POWELL and/or “JOHN DOE” #1-10, possess probable cause to arrest plaintiff.

15. At no time on May 20, 2018, did defendants POWELL and/or “JOHN DOE” #1-10, possess information that would lead a reasonable officer to believe probable cause existed to arrest plaintiff.

16. At no time on May 20, 2018, did defendants POWELL and/or “JOHN DOE” #1-10, possess probable cause and/or reasonable suspicion to search plaintiff’s person or effects nor did they obtain voluntary consent from him to do so.

17. At no time on May 20, 2018, did defendants POWELL and/or “JOHN DOE” #1-10, possess information that would lead a reasonable officer to believe probable cause and/or reasonable suspicion existed to search plaintiff’s person or effects.

18. Thereafter, plaintiff was transported by, upon information and belief, defendants POWELL and/or "JOHN DOE" #1-10, to a nearby police precinct where he was searched, fingerprinted, photographed, confined in a holding cell for several hours, and charged with Criminal Possession of a Weapon pursuant to New York Penal Law Section 265.01(1).

19. At no time was plaintiff ever in violation of New York Penal Law Section 265.01(1) because under the law it is legally impossible for persons who possesses a legal utility knife to violate this law, given that the knife in question does not meet the statutory definition of a gravity knife under New York Penal Law Section 265.00(5).

20. At no time was plaintiff ever in violation of any of the proscriptions of New York Penal Law Section 265.01(1), the applicable law governing the possession of illegal gravity knives.

21. Subsequently, after being detained for several hours, plaintiff was released with a Desk Appearance Ticket.

22. In connection with plaintiff's arrest, defendants POWELL and/or "JOHN DOE" #1-10, filled out false and/or misleading police reports and forwarded them to prosecutors at the New York County District Attorney's Office. Thereafter, defendants POWELL and/or "JOHN DOE" #1-10 repeated the aforementioned false and misleading information regarding the facts and circumstances of plaintiff's arrest.

23. Specifically, defendant POWELL, and upon information and belief, defendants "JOHN DOE" #1-10, falsely stated that plaintiff was in possession of a gravity knife.

24. However, at no time was plaintiff in possession of a gravity knife in that the knife plaintiff did in fact possess was not a gravity knife, rather it was a legal folding knife, nor did plaintiff possess any other contraband, nor did plaintiff commit any crimes and/or offenses or behave unlawfully in any way.

25. At no time did plaintiff commit any crime or violation of law to justify his arrest, seizure, detention, the issuance of the aforementioned Desk Appearance Ticket, or prosecution.

26. As a result of the foregoing, plaintiff spent several hours in custody and made approximately two (2) court appearances before all charges against him were adjourned in contemplation of dismissal, on or about August 17, 2018.

27. In addition, as a result of the foregoing, plaintiff missed work, causing him to lose wages.

28. As a result of the foregoing, plaintiff MORGAN ADZEI sustained, inter alia, loss of liberty, physical injuries, mental anguish, shock, fright, apprehension, embarrassment, humiliation, lost wages, and deprivation of his constitutional rights.

29. Plaintiff was falsely arrested and prosecuted for violating sections of the New York Penal Law that do not apply to the legal knife that he possessed at the time of his arrest.

30. As a result of the actions and policy promulgated by defendants plaintiff has suffered injuries of a constitutional dimension, including but not limited to, existing and continuing violations of his civil and constitutional rights under the Fourth, and Fifth Amendments to the Constitution.

STATE CLAIMS

31. Plaintiff repeats, reiterates and re-alleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.

32. On or about August 17, 2018 and within (90) days after the claim herein accrued, the plaintiff duly served upon, presented to and filed with defendant THE CITY OF NEW YORK, a Notice of Claim setting forth all facts and information required under the General Municipal Law § 50 (e).

33. Defendant THE CITY OF NEW YORK has wholly neglected or refused to make an adjustment or payment thereof and more than thirty (30) days have elapsed since the presentation of such claim as aforesaid.

34. Defendant THE CITY OF NEW YORK demanded a hearing pursuant to General Municipal Law § 50-h and said hearing was held on or about October 31, 2018.

35. This action was commenced within one (1) year and ninety (90) days after the causes of action herein accrued.

36. Plaintiff has complied with all conditions precedent to maintaining the instant action.

37. This action falls within one or more of the exceptions as outlined in C.P.L.R. § 1602.

**FIRST CLAIM FOR RELIEF UNDER N.Y. STATE LAW
FALSE ARREST/IMPRISONMENT**

38. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.

39. Defendant police officers POWELL and/or "JOHN DOE" #1-10 arrested plaintiff in the absence of probable cause and without a warrant.

40. As a result of the foregoing, plaintiff was falsely imprisoned, his liberty was restricted for an extended period of time, he was put in fear for her safety, and humiliated and subjected to handcuffing and other physical restraints.

41. Plaintiff was conscious of said confinement and did not consent to the same.

42. The confinement of plaintiff was without probable cause and was not otherwise privileged.

43. As a result of the aforesaid conduct by defendants, plaintiff was subjected to an illegal, improper and false arrest by the defendants and taken into custody and caused to be falsely imprisoned, detained, confined, incarcerated and prosecuted by the defendants in criminal proceedings. The aforesaid actions by the defendants constituted a deprivation of plaintiff's rights.

44. As a result of the aforementioned conduct, plaintiff has suffered physical and mental injury, together with embarrassment, humiliation, shock, fright, loss of wages, and loss of freedom.

SECOND CLAIM FOR RELIEF UNDER N.Y. STATE LAW
ASSAULT

45. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.

46. Defendants POWELL and/or "JOHN DOE" #1-10's aforementioned actions placed plaintiff in apprehension of imminent harmful and offensive bodily contact.

47. As a result of defendants' conduct, plaintiff has suffered physical pain and mental anguish, together with shock, fright, apprehension, embarrassment, and humiliation.

THIRD CLAIM FOR RELIEF UNDER N.Y. STATE LAW
BATTERY

48. Plaintiff repeats, reiterates, and realleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.

49. Defendant police officers POWELL and/or "JOHN DOE" #1-10, touched plaintiff in a harmful and offensive manner.

50. Defendant police officers POWELL and/or "JOHN DOE" #1-10 did so without privilege or consent from plaintiff.

51. As a result of defendants' conduct, plaintiff has suffered physical pain and mental anguish, together with shock, fright, apprehension, embarrassment and humiliation.

**FOURTH CLAIM FOR RELIEF UNDER N.Y. STATE LAW
INTENTIONAL INFLICTION OF EMOTIONAL DISTRESS**

52. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.

53. The aforementioned conduct was extreme and outrageous, and exceeded all reasonable bounds of decency.

54. The aforementioned conduct was committed by defendants POWELL and/or "JOHN DOE" #1-10 while acting within the scope of their employment by defendant THE CITY OF NEW YORK.

55. The aforementioned conduct was committed by defendants POWELL and/or "JOHN DOE" #1-10 while acting in furtherance of their employment by defendant THE CITY OF NEW YORK.

56. The aforementioned conduct was intentional and done for the sole purpose of causing severe emotional distress to plaintiff.

57. As a result of the aforementioned conduct, plaintiff suffered severe emotional distress, mental injury, together with embarrassment, humiliation, shock, fright and loss of freedom.

**FIFTH CLAIM FOR RELIEF UNDER N.Y. STATE LAW
NEGLIGENT HIRING/TRAINING/SUPERVISION/RETENTION**

58. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.

59. Defendant CITY OF NEW YORK selected, hired, trained, retained, assigned and supervised all members of its Police Department, including the defendants individually named above.

60. Defendant CITY OF NEW YORK was negligent and careless when it selected, hired, trained, retained, assigned, and supervised all members of its Police Department including the defendants individually named above.

61. Due to the negligence of the defendants as set forth above, plaintiff suffered mental injury, pain and trauma, together with embarrassment, humiliation shock, fright, and loss of freedom.

62. As a result of the foregoing, plaintiff is entitled to compensatory damages and is further entitled to punitive damages against the individual defendants.

FEDERAL CLAIMS

FIRST CLAIM FOR RELIEF **DEPRIVATION OF FEDERAL RIGHTS UNDER 42 U.S.C. § 1983**

63. Plaintiff repeats, reiterates and re-alleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.

64. All of the aforementioned acts of defendants, their agents, servants and employees, were carried out under the color of state law.

65. All of the aforementioned acts deprived plaintiff of the rights, privileges and immunities guaranteed to citizens of the United States by the Fourth and Fourteenth Amendments to the Constitution of the United States of America, and in violation of 42 U.S.C. § 1983.

66. The acts complained of were carried out by the aforementioned individual defendants in their capacities as police officers with all the actual and/or apparent authority attendant thereto.

67. The acts complained of were carried out by the aforementioned individual defendants in their capacities as police officers and corrections officers, pursuant to the customs, usages, practices, procedures, and the rules of the City of New York, the New York City Police Department and the New York City Department of Corrections, all under the supervision of ranking officers of said department.

68. Defendants, collectively and individually, while acting under color of state law, engaged in conduct which constituted a custom, usage, practice, procedure or rule of the respective municipality/authority, which is forbidden by the Constitution of the United States.

**SECOND CLAIM FOR RELIEF ARISING
FALSE ARREST UNDER 42 U.S.C. § 1983**

69. Plaintiff repeats, reiterates and re-alleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.

70. As a result of the aforesaid conduct by defendants POWELL and/or “JOHN DOE” #1-10, plaintiff was subjected to illegal, improper and false arrest by the defendants, taken into custody, and caused to be falsely imprisoned, detained, and confined, without any probable cause, privilege or consent.

71. As a result of the foregoing, plaintiff’s liberty was restricted for an extended period of time, he was put in fear for his safety, and he was humiliated and subjected to handcuffing and other physical restraints, without probable cause.

**THIRD CLAIM FOR RELIEF
DENIAL OF CONSTITUTIONAL RIGHT TO FAIR TRIAL
UNDER 42 U.S.C. § 1983**

72. Plaintiff repeats, reiterates and re-alleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.

73. Defendants POWELL and/or “JOHN DOE” #1-10 created false evidence against plaintiff

74. Defendants POWELL and/or “JOHN DOE” #1-10 forwarded false evidence and false information to prosecutors in the Kings County District Attorney’s office.

75. Defendants POWELL and/or “JOHN DOE” #1-10 misled the prosecutors by creating false evidence against plaintiff and thereafter providing false testimony throughout the criminal proceedings.

76. In creating false evidence against plaintiff, in forwarding false evidence and information to prosecutors, and in providing false and misleading sworn statements, defendants POWELL and/or “JOHN DOE” #1-10 violated plaintiff’s constitutional right to a fair trial under the Sixth Amendment and the Due Process Clause of the Fifth and Fourteenth Amendments of the United States Constitution.

77. As a result of the foregoing, plaintiff’s liberty was restricted for an extended period of time, he was put in fear for his safety, and he was humiliated and subjected to handcuffing and other physical restraints without probable cause.

FOURTH CLAIM FOR RELIEF
MUNICIPAL LIABILITY UNDER 42 U.S.C. § 1983

78. Plaintiff repeats, reiterates and re-alleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.

79. Defendants, collectively and individually, while acting under color of state law, engaged in conduct that constituted a custom, usage, practice, procedure or rule of the respective municipality/authority, which is forbidden by the Constitution of the United States.

80. Defendants caused plaintiff to be arrested in the absence of any evidence of criminal wrongdoing, notwithstanding their knowledge that said arrests were not based on probable cause or any legitimate basis under the law in violation of the constitutional rights of plaintiff.

81. Defendants caused plaintiff to be arrested in the absence of any evidence of criminal wrongdoing, notwithstanding their knowledge that said arrests were not based on probable cause or any legitimate basis under the law and knowing that plaintiff would be required to appear in court to be prosecuted under the aforementioned unconstitutional arrests in violation of the constitutional rights of plaintiff.

82. The acts complained of were carried out by the aforementioned individual defendants and subordinate officers of the NYPD officers, including P.O. DWIGHT POWELL, Shield No. 9038 (Tax Id. No. 951077) and P.O. "JOHN DOE"'s #1-10 in their capacities as NYPD officers and officials, with all the actual and/or apparent authority attendant thereto.

83. The acts complained of were carried out by the aforementioned individual defendants and subordinate NYPD officers, including P.O. DWIGHT POWELL, Shield No. 9038 (Tax Id. No. 951077), and P.O. "JOHN DOE"'s #1-10 in their capacities as NYDPR officers and officials pursuant to the customs, policies, usages, practices, procedures, and rules of the City of New York and NYPD, all under the supervision of other ranking officers of said departments.

84. The pattern of unconstitutional arrests established by policy-making officials within the NYPD and the City of New York, the failure to train officers and employees regarding the distinctions between legal folding knives and illegal gravity knives, and the failure to supervise and/or discipline staff responsible for the unconstitutional arrests are so institutionalized as to represent a policy or custom of unconstitutional violations that have resulted in the deprivation of plaintiff's rights.

85. The aforementioned customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department include, but are not limited to, the following unconstitutional practices:

- i. arresting individuals regardless of probable cause in order to inflate the officer's arrest statistics; and,
- ii. arresting innocent persons notwithstanding the existence of credible evidence which exonerates the accused of any criminal wrongdoing; and,
- iii. fabricating evidence in connection with their prosecution in order to cover up police or NYPD employee misconduct; and,
- iv. arresting innocent persons notwithstanding the existence of credible evidence which exonerates the accused of any criminal wrongdoing and regardless of probable cause, for the purpose of obtaining overtime compensation; and,
- v. failing to take reasonable steps to control and/or discipline police officers who lie and/or commit perjury in order to cover up police misconduct and/or inflate arrest statistics; and,
- vi. explicitly and/or implicitly establishing a policy of falsely arresting individuals who possess legal utility knives in order to intimidate and harass individuals who carry them; and,
- vii. making arrests without probable cause or any legal basis in order to promulgate the City's deliberately flawed interpretation of a gravity knife; and,
- viii. showing deliberate indifference to whether the arrests made pursuant to that were made based on probable cause or with the proper application of the New York Penal Law; and,
- ix. showing deliberate indifference to the training of subordinate officers to not arrest individuals unless they are arrested upon probable cause or a basis under the law in accordance with the proper standards under the New York Penal Law; and,
- x. showing deliberate indifference to training officers as to the difference between gravity and non-gravity knives; and,
- xi. having no check or balance in place to verify the legality of these knives; and,
- xii. showing deliberate indifference to the supervision of subordinate officers in the NYPD for the arrests in determining whether the alleged "gravity knives" were legitimate; and,

- xiii. making the aforementioned arrests notwithstanding clearly established law prohibiting them; and/or;
- xiv. specifically instructing officers on using an improper test or manner to check the functionality of a knife that specifically includes legal folding knives within the definition of gravity knives; and,
- xv. utilizing an improper test or manner to check the functionality of a knife that specifically includes legal folding knives within the definition of gravity knives; and,
- xvi. failing to properly instruct and educate officers regarding the proper definition of centrifugal force; and,
- xvii. city policymakers continued constructive acquiescence to repeated and continuing constitutional violations of individuals who are being illegally arrested and prosecuted.

86. The existence of the aforesaid unconstitutional customs and policies may be inferred from repeated occurrences of similar wrongful conduct as is the case with the plaintiff in this matter as well as the NYPD's own statistics and statistics and reports maintained by other City Agencies.

87. The foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department constituted deliberate indifference to the safety, well-being and constitutional rights of the plaintiff.

88. The foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department were the direct and proximate cause of the constitutional violations suffered by the plaintiff as alleged herein.

89. The foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department were the moving force behind the constitutional violations suffered by the plaintiff as alleged herein.

90. Defendants, collectively and individually, while acting under color of state law, were directly and actively involved in violating the plaintiff's constitutional rights.

91. Defendants, collectively and individually, while acting under color of state law, acquiesced in a pattern of unconstitutional conduct by subordinate police officers, and were directly responsible for the violation of the plaintiff's constitutional rights.

92. The acts complained of deprived the plaintiff of his right:

- A. Not to be deprived of liberty without due process of law;
- B. To be free from seizure and arrest not based upon probable cause;
- C. Not to have summary punishment imposed upon him; and
- D. To receive equal protection under the law.

WHEREFORE, plaintiff respectfully requests judgment against defendants as follows:

- i. an order awarding compensatory damages in an amount to be determined at trial;
- ii. an order awarding punitive damages in an amount to be determined at trial;
- iii. reasonable attorneys' fees and costs; and
- iv. directing such other and further relief as the Court may deem just and proper, together with attorneys' fees, interest, costs and disbursements of this action.

Dated: New York, New York
March 12, 2019

BY: _____/S_____
GERALD COHEN
JOSHUA FITCH
ILYSSA FUCHS
COHEN & FITCH LLP
Attorneys for Plaintiff
233 Broadway, Suite 1800
New York, N.Y. 10279
(212) 374-9115

PLAINTIFF'S VERIFICATION

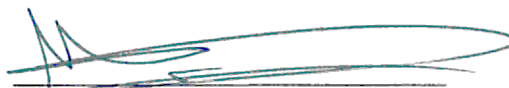
STATE OF NEW YORK)

) ss.:

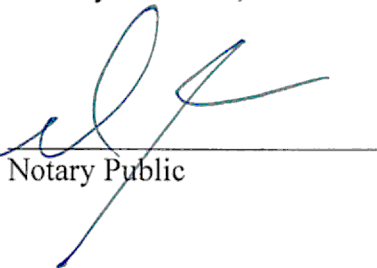
COUNTY OF NEW YORK)

MORGAN ADZEI, being duly sworn, deposes and says:

I am the plaintiff in the foregoing action; I have read the annexed Complaint and know the contents thereof; the same are true to my own knowledge, except as to the matters therein stated to be alleged on information and belief, and to those matters I believe them to be true.


MORGAN ADZEI

Sworn to before me this
12th day of March, 2019



Notary Public